

Pontypool Water Act, 1956

4 & 5 ELIZ. 2 Ch. lii

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CHAPTER lii

An Act to change the name of the Pontypool Gas and Water Company to provide for the transfer of certain of the British Gas three per centum Guaranteed Stock 1990-95 to the existing stockholders of the Company and for the consolidation of the existing ordinary capital to confer further powers upon the Company and for other purposes.

[17th May 1956.]

WHEREAS the Pontypool Gas and Water Company (hereinafter in this Act referred to as "the Company") were incorporated by the Pontypool Gas and Water Act 1873 and under the provisions of that Act and subsequent Acts and Orders were authorised to supply gas and water within the respective limits therein defined:

And whereas by the Gas Act 1948 (hereinafter in this Act referred to as "the Gas Act") provision was made in the case of the Company and of certain other companies being companies who carried on water undertakings as well as gas undertakings (in the Gas Act and hereinafter referred to as "composite companies") for the transfer to the appropriate area gas board of property held or used by a composite company wholly or mainly for the purpose of their gas undertaking and of rights liabilities and obligations acquired or incurred and agreements made by a composite company as aforesaid but no such provision was made in relation to the water undertaking of a composite company unless the company served notice on the Minister of Fuel and Power stating their wish that such transfer should take place:

And whereas the Company having elected not to serve notice on the Minister as aforesaid have had issued to them as compensation for the vesting of their gas undertaking in the Wales

Gas Board British Gas three per centum Guaranteed Stock 1990-95 (hereinafter in this Act referred to as "gas stock") to the nominal amount of one hundred and ninety-one thousand three hundred and ninety-six pounds:

And whereas a statement is set forth in the First Schedule to this Act as at the thirty-first day of December one thousand nine hundred and fifty-four of the nominal and paid up capital of the Company:

And whereas it is expedient that the ordinary stock and shares shown in the statement of capital hereinbefore referred to as issued at the passing of this Act for the purpose of the Company's undertaking should be consolidated as in this Act provided and that there should be issued to the persons who on the first day of November one thousand nine hundred and fifty-six are the holders of the said stock and shares the amounts of consolidated ordinary stock provided for in this Act together with the amounts of gas stock hereinafter referred to:

And whereas it is expedient that the Company should retain fifty thousand pounds of the gas stock hereinbefore referred to to meet certain future capital expenses of the Company and that gas stock to the amount of one hundred and thirty-six thousand two hundred and twenty-eight pounds should be distributed to the persons who on the first day of November one thousand nine hundred and fifty-six are the holders of the ordinary stock and shares in the capital of the Company in the proportion as in this Act provided:

And whereas it is expedient that the Company should be authorised to raise additional capital and to borrow further moneys and that such other financial provisions should be enacted as are in this Act contained:

And whereas it is expedient that such further powers should be conferred upon the Company and that such further provisions should be enacted as are in this Act contained:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Pontypool Water Act 1956.

(2) The Pontypool Gas and Water Acts and Orders 1873 to 1952 and this Act may be cited together as the Pontypool Water Acts and Orders 1873 to 1956.

2.—(1) The following enactments so far as the same are applicable to the purposes and are not inconsistent with the provisions of the Pontypool Water Acts and Orders 1873 to 1956 are hereby incorporated with this Act (namely):—

Incorporation
and
application
of Acts.

- (a) the Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital);
- (b) the Companies Clauses Act 1863 (except the provisions thereof which limit the rate of dividend on preference capital).

(2) Section 75 (Sale of stock by auction or tender) of the Third Schedule to the Water Act 1945 shall apply to the Company:

Provided that in its application to the Company the word “stock” shall include shares.

(3) In the construction of the provisions so incorporated—

- (a) the expression “the special Act” and “the Company” shall be read as references to this Act and to the Company respectively;
- (b) in section 75 of the Companies Clauses Consolidation Act 1845 the expression “shareholder” shall include a stockholder and for the purposes of that section each holding of ten pounds of stock in the capital of the Company shall be deemed to represent a share.

3.—(1) In this Act unless the subject or context otherwise requires the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated with this Act shall have the same respective meanings and—

Interpretation.

- “the appointed day” means the first day of November one thousand nine hundred and fifty-six;
- “the Company” means the Pontypool and District Water Company;
- “the directors” means the directors of the Company;
- “enactment” means any provision of a public general Act of a local private or personal Act of a Provisional Order confirmed by an Act or of any regulation or order made under an Act;
- “the existing Acts and Orders” means the Pontypool Gas and Water Acts and Orders 1873 to 1952;
- “the existing ordinary capital” means the seven per centum capital and the ten per centum capital;
- “the Gas Act” means the Gas Act 1948;

“gas stock” means British Gas three per centum Guaranteed Stock 1990-95;

“the limits of supply” means the limits within which the Company are for the time being authorised to supply water;

“the seven per centum capital” means—

(a) the ordinary “B” shares in the capital of the Company of a nominal amount of thirteen thousand six hundred pounds;

(b) the ordinary “C” shares in the capital of the Company of a nominal amount of forty thousand pounds; and

(c) the ordinary “D” shares in the capital of the Company of a nominal amount of one hundred and twenty-one thousand seven hundred and ninety pounds;

all of which are entitled to a maximum dividend at the rate of seven pounds per centum per annum;

“share capital” includes stock not being debenture stock;

“substituted stock” means the amount of gas stock to which a holder of the existing ordinary capital is entitled under the provisions of section 5 (Transfer of gas stock to holders of existing ordinary capital), of this Act and of consolidated ordinary stock to which he is also entitled under the provisions of section 6 (Consolidation of existing ordinary capital) of this Act;

“the ten per centum capital” means—

(a) the ordinary stock in the capital of the Company of a nominal amount of thirteen thousand two hundred pounds; and

(b) the ordinary “A” shares in the capital of the Company of a nominal amount of thirteen thousand two hundred pounds;

both of which are entitled to a maximum dividend at the rate of ten pounds per centum per annum;

“the undertaking” means the undertaking of the Company as for the time being authorised;

“the Water Act” means the Water Act 1945.

(2) References in this Act to any other enactment shall be construed as references to that enactment as amended by any other enactment including this Act.

4. As from the passing of this Act the name of the Pontypool Gas and Water Company shall be changed to "the Pontypool and District Water Company" and by that name the Company shall have a common seal. Change of name of Company.

5. Subject to the provisions of section 9 (Certificates to be called in and others issued) of this Act the Company shall as soon as is reasonably practicable after the appointed day arrange for the transfer to each of the persons who immediately before that day were entitled to be the holders of the existing ordinary capital an amount of gas stock calculated as follows:— Transfer of gas stock to holders of existing ordinary capital.

for each twelve pounds of ten per centum capital ten pounds fourteen shillings of gas stock ;

for each ten pounds of seven per centum capital six pounds eight shillings and sixpence of gas stock ;

and so in proportion for every fraction thereof (not being a fraction of one penny which shall be disregarded) as the case may be.

6.—(1) As from the appointed day the existing ordinary capital shall be consolidated into two hundred and eighteen thousand two hundred and fifty-three pounds (or such less amount as shall be sufficient to give effect to the provisions of this Act with respect to the substitution of amounts of consolidated ordinary stock for amounts of stock in the existing ordinary capital) of stock to be called "consolidated ordinary stock" and ranking in all respects as one and the same class of stock and conferring on the holders thereof the same rights in all respects inter se. Consolidation of existing ordinary capital.

(2) As on the appointed day there shall be by virtue of this section created two hundred and eighteen thousand two hundred and fifty-three pounds of consolidated ordinary stock or such less amount as aforesaid for the purposes of this Act and the consolidated ordinary stock so created shall be deemed to be fully paid up and shall be divided among and shall as from the appointed day but subject to the provisions of the said section 9 be vested without payment in the persons who immediately before the appointed day are entitled to be the holders of the existing ordinary capital according to their respective holdings at the following rates:—

for each twelve pounds of ten per centum capital seventeen pounds seven shillings and elevenpence of consolidated ordinary stock ;

for each ten pounds of seven per centum capital ten pounds five shillings and threepence of consolidated ordinary stock ;

and so in proportion for every fraction thereof.

(3) The consolidated ordinary stock to be created and divided as aforesaid shall as soon as practicable after the appointed day be registered in the books of the Company in the respective names of the persons entitled thereto and shall rank for dividend as from the appointed day and the existing ordinary capital shall cease to bear any dividend in respect of any period other than the period between the last period for which a dividend was paid by the Company before the appointed day and the appointed day.

Fractions to be paid in cash.

7.—(1) In every case where under the provisions of section 6 (Consolidation of existing ordinary capital) of this Act the holder of stock or shares in the existing ordinary capital would be registered as the holder of an amount of consolidated ordinary stock including any fractional part of one pound the Company instead of registering such holder and issuing a certificate made out in his name as holder of an amount of consolidated ordinary stock including such fractional part shall pay as soon as reasonably practicable to such holder such sum in cash as calculated in accordance with the provisions of subsection (2) of the said section 6 will be equal in value to the value of such fractional part and shall register such holder and issue a certificate made out in his name as holder of an amount of consolidated ordinary stock excluding such fractional part.

(2) The Company shall either cancel the whole or any part of the consolidated ordinary stock in respect of which payment in cash has been made under the provisions of this section or issue the same to any willing purchaser thereof and any loss or expense which may be incurred in connection with such issue shall be borne by the Company:

Provided that any such issue shall be exempt from the provisions of section 75 (Sale of stock by auction or tender) of the Third Schedule to the Water Act as applied to the Company by this Act.

Substituted stock to be held on same trusts etc. as stock for which same is substituted.

8. All substituted stock of which the holders of stock or shares in the existing ordinary capital (as the case may be) are pursuant to the foregoing provisions of this Act registered as holders and the sums of cash (if any) paid by the Company under section 7 (Fractions to be paid in cash) of this Act shall be held in the same rights upon the same trusts and subject (so far as is consistent with those provisions) to the same powers provisions charges and liabilities as those in upon or subject to which the stock or shares in the existing ordinary capital (as the case may be) for which the substituted stock and sums of cash (if any) is or are substituted was held immediately before the appointed day and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or

other instrument disposing of or affecting any stock or shares in the existing ordinary capital (as the case may be) and trustees executors administrators and all other holders in any representative or fiduciary capacity and persons under disability may and shall accept the substituted stock of which they are pursuant to the foregoing provisions of this Act registered as holders and the sums of cash (if any) paid as aforesaid in substitution for the stock or shares in the existing ordinary capital held by them and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as fully and freely in all respects as they might have retained disposed of or otherwise dealt with such stock or shares in the existing ordinary capital (as the case may be).

9.—(1) The Company shall call in and cancel the certificates of the stock or shares in the existing ordinary capital and shall issue or in the case of gas stock arrange in accordance with the provisions of section 10 (As to transfer of gas stock) of this Act for the issue in exchange for those certificates to the respective holders thereof free of charge certificates of substituted stock to the amount to which those holders are by this Act respectively entitled but no holder shall be entitled to a new certificate or certificates (as the case may be) or to receive any sum of cash as aforesaid or to receive any amount by way of interest or dividend on the amount of substituted stock to which he would otherwise be entitled until he shall have delivered up to the Company to be cancelled the existing certificate for which such new certificate or certificates and sum of cash (if any) is or are to be substituted or shall have proved to the reasonable satisfaction of the directors the loss or destruction of such existing certificate and shall have given such guarantee or indemnity in respect thereof as the directors may require: Certificates to be called in and others issued.

Provided that subject to the provisions of this section until the issue of a new certificate or certificates (as the case may be) the holders of existing certificates shall according to the amount of substituted stock to be issued by virtue of this Act for the stock or shares in the existing ordinary capital (as the case may be) and to which such existing certificates respectively relate have and possess the same rights and privileges as if such existing certificates were certificates for the amount of substituted stock so to be issued.

(2) In the event of the holder of any amount of the stock or shares in the existing ordinary capital (as the case may be) failing to deliver to the Company the existing certificate or proving to the reasonable satisfaction of the directors that it has been lost and giving such guarantee or indemnity as aforesaid the Company shall pay the amount of substituted stock and the sums of money (if any) to which he is entitled under the provisions

of this Act into court as if the said amount and sum (if any) belonged to a trust of which they were trustees and on payment into court as aforesaid the Company shall cause a notice to be sent by post in a registered letter to such holder stating that such amount and sum (if any) has been placed to his credit as aforesaid.

As to transfer
of gas stock.

10.—(1) Not more than twenty-one days after the receipt by the Company of any of the certificates of the existing ordinary capital the Company shall furnish to the registrar a statement specifying the names and addresses and descriptions of the registered holders of the stock or shares to which such certificates relate and the amount of gas stock to which those holders are respectively entitled.

(2) A statement given in pursuance of subsection (1) of this section if purporting to be signed by a director or duly authorised officer of the Company shall be received by the registrar as evidence of all matters stated therein.

(3) The registrar shall give effect to the statement given in pursuance of the foregoing provisions of this section as if the amounts of gas stock specified therein had been transferred to the holders of the existing ordinary capital specified therein by individual instruments of transfer.

(4) In this section "the registrar" means the registrar of gas stock.

Closing of
transfer books
before issue
of substituted
stock.

11.—(1) (a) The registers of transfers of stock or shares in the existing ordinary capital shall be closed during the period of fourteen days immediately before the appointed day.

(b) The Company shall give not less than seven days' notice of the closing of the said registers by advertisement in one or more newspapers circulating in the limits of supply and not later than the date on which the said advertisement is published send a copy of the notice to the secretary of the London Stock Exchange.

(2) Any transfer of an amount of the said ordinary stock or shares made during the time when the registers of transfers are closed shall as between the Company and the person claiming under the transfer but not otherwise be considered as made subsequent to the appointed day.

Persons to
be treated
as stock-
holders.

12.—(1) The persons whose names appear immediately before the appointed day in any register of the Company to be the holders of the ordinary stock or shares (as the case may be) to which the register relates shall unless the contrary be proved to the satisfaction of the directors be considered to be the holders of that stock or shares and the receipt in writing of

such persons or of their executors or administrators or of the guardian of the estate of any such person being a minor shall be an effectual discharge to the Company and the directors.

(2) Where the directors are for three months after the appointed day unable after diligent inquiry to ascertain the person to whom any stock ought to be transferred or money ought to be paid or who can give an effectual receipt therefor they may at any time after the expiration of that period pay such stock or money into court as if it belonged to a trust of which they were trustees.

13. The directors may without first obtaining the sanction of the Company in general meeting pay in respect of any part of the twelve months ending on the day immediately preceding the appointed day dividends on the existing ordinary capital at such rates as together with any dividends which have already been paid in respect of any part of that period will not exceed—

Payment of
final dividends
on existing
ordinary
capital.

- (a) in the case of the seven per centum capital the rate of seven per centum per annum ; and
- (b) in the case of the ten per centum capital the rate of ten per centum per annum.

14.—(1) Notwithstanding the repeals effected by section 23 (Repeals) of this Act the Company may continue and they are hereby authorised to raise additional capital not exceeding in the whole three hundred and thirty thousand five hundred and three pounds fifteen shillings by the creation and issue at their option of further amounts of consolidated ordinary or ordinary stock or preference stock or wholly or partially by one or more of those modes respectively.

Additional
capital.

(2) It shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of share capital than shall be sufficient to produce including any premiums and allowing for any discounts which may be obtained or allowed on the issue thereof the sum of three hundred and thirty thousand five hundred and three pounds fifteen shillings.

15. As from the appointed day the capital of the Company shall be six hundred and twenty-five thousand pounds consisting of—

Amount of
capital of
Company.

- (a) two hundred and eighteen thousand two hundred and fifty-three pounds being the aggregate amount of the consolidated ordinary stock created by section 6 (Consolidation of existing ordinary capital) of this Act ;
- (b) seventy five thousand pounds redeemable preference stock ;

- (c) one thousand two hundred and forty-three pounds five shillings being the premiums received on the issue of the said redeemable preference stock ; and
- (d) additional capital sufficient to produce three hundred and thirty thousand five hundred and three pounds fifteen shillings referred to in section 14 (Additional capital) of this Act.

New capital
to rank with
existing
capital of
same class.

16. Any consolidated ordinary stock or four per centum preference stock created under section 14 (Additional capital) of this Act and the holders thereof respectively in proportion to the amount of their stock shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if such consolidated ordinary stock or four per centum preference stock were part of the consolidated ordinary stock created by section 6 (Consolidation of existing ordinary capital) of this Act or four per centum preference stock created under the existing Acts and Orders.

Maximum
rates of
dividend.

17. Subject to the provisions of this Act as from the appointed day the Company shall not in respect of any year pay a dividend on the consolidated ordinary stock created by this Act at a rate greater than five per centum :

Provided that nothing in this section shall prevent the payment of a greater dividend on the consolidated ordinary stock which is necessary to make up the deficiencies of any previous dividends which shall have fallen short of the said yearly rate of five per centum during the last five years before the year in respect of which a dividend is being paid on that stock.

Power to
borrow.

18.—(1) As from the appointed day the Company may without obtaining any certificate of a justice under section 40 of the Companies Clauses Consolidation Act 1845 raise for the purposes of the undertaking either by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock or partly by one of those modes and partly by the other any sum or sums of money not exceeding in the whole—

- (a) one hundred and forty-seven thousand two hundred and forty eight pounds ; and
- (b) one half of the amount (including premiums and allowing for discounts) which for the time being has been raised by the Company after the passing of this Act by the creation and issue of share capital.

(2) The powers conferred by this section shall be without prejudice to the right of the Company to reborrow from time to time any amounts which having been raised by borrowing on mortgage or by the creation and issue of redeemable debenture stock are thereafter paid off.

19.—(1) All consolidated ordinary stock preference stock and debenture stock of the Company shall be issued and be held in amounts of one pound or of a multiple of one pound and not otherwise and the Company shall not be under any obligation to register a transfer of any consolidated ordinary stock or preference stock or debenture stock which would result in the transferor or transferee holding consolidated ordinary stock preference stock or debenture stock (as the case may be) of an amount other than one pound or a multiple of one pound. Minimum holdings of stock and debenture stock.

(2) Notice of this enactment so far as applicable shall be stated in all certificates of consolidated ordinary stock preference stock and debenture stock of the Company (as the case may be) issued after the passing of this Act.

20. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole. As to appointment of a receiver.

21. For the purposes of section 1 (Authorised investments) of the Trustee Act 1925 the Company shall as from the vesting date (as defined in and for the purposes of the Gas Act) be deemed to have been a company to which paragraph (1) of subsection (1) of that section applies and in the application of that paragraph to the Company it shall have effect as from the appointed day as if for the words "five per centum" there were substituted the words "four per centum". Application to Company of section 1 of Trustee Act 1925.

22. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946. Saving for powers of Treasury.

23. The provisions of the existing Acts and Orders mentioned— Repeals.

(a) in Part I of the Second Schedule to this Act are hereby repealed to the extent mentioned in the fourth column of that Part;

(b) in Part II of the said schedule shall be repealed as from the appointed day to the extent mentioned in the fourth column of that Part.

24. The provisions of the existing Acts and Orders mentioned in the Third Schedule to this Act shall cease to have effect to the extent mentioned in the fourth column of that schedule in relation to the Company and their undertaking but not so as Provisions relating to gas undertaking to cease to have effect.

to affect or prejudice in any way the rights conferred and the liabilities and obligations imposed on the Wales Gas Board by or under any of those provisions by reason of the vesting of those powers rights and obligations in the said board by virtue of the Gas Act and of the Gas (Allocation of Undertakings to Area Boards and Gas Councils) Order 1949.

Costs of Act. 25. All costs charges and expenses of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and shall be charged against revenue.

SCHEDULES

FIRST SCHEDULE

STATEMENT OF CAPITAL OF THE COMPANY

	Description	Maximum dividend	Total amount authorised	Amount issued	Premiums	Balance unissued
			£	£	£ s. d.	£ s. d.
	Stock	%				
	{ "A" shares	10	13,200	13,200		Nil
	"B" shares	10	13,200	13,200		Nil
	"C" shares	7	13,600	13,600		Nil
	"D" shares	7	40,000	40,000		Nil
	"D" shares	7	75,000	69,030		5,970 0 0
	"D" shares	7	15,000	Nil		15,000 0 0
	"D" shares	7	19,940	13,940		6,000 0 0
	"D" shares	7	20,860	10,860		10,000 0 0
	"D" shares	7	33,970	3,970		30,000 0 0
	"D" shares	7	33,990	23,990		10,000 0 0
	"D" shares	7	20,000	Nil		20,000 0 0
	"D" shares	7	180,000	Nil		180,000 0 0
			478,760	201,790		276,970 0 0
			120,000	75,000	1,243 5 0	43,756 15 0
	4% redeemable preference stock (1970)	4				
			£598,760	£276,790	£1,243 5 0	£320,726 15 0

SECOND SCHEDULE

PROVISIONS OF PONTYPOOL GAS AND WATER ACTS
AND ORDERS, 1873 TO 1952 REPEALED

PART I

PROVISIONS REPEALED AS FROM THE PASSING OF THIS ACT

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas and Water Act 1873	2	Provisions of general Acts herein named incorporated.	So much of the section as incorporates the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 and applies the latter Act to the then existing undertaking of the Pontypool Gas and Water Company.
	3	Interpretation of terms.	So much of the section as defines the expression "the gasworks" The words "gasworks and" in the definition of the expression "the undertaking".
	8	Memorandum and articles of association of the original company to be void without prejudice to remedies for antecedent breaches thereof.	The whole section.
	9	Nothing to affect previous rights and liabilities.	The whole section.
	10	Contracts prior to Act to be binding.	The whole section.
	11	Actions &c. not to abate.	The whole section.
	12	Trustees of original company to be indemnified.	The whole section.
	13	Company to satisfy liabilities of original company.	The whole section.
	14	Recovery of gas rents &c.	The whole section.
	15	As to payment of debts owing before passing of Act.	The whole section.
	16	Certificates &c. to remain in force.	The whole section.
	17	Officers to continue until removed.	The whole section.
	18	Present registers of members to be continued.	The whole section.
	20	Vesting of old shares in present shareholders.	The whole section.

Act or Order	Section	Marginal note	Extent of repeal	2ND SCH. —cont.
The Pontypool Gas and Water Act 1873—cont.	21	Company shall call in and cancel existing share certificates and issue new certificates in lieu thereof.	The whole section.	
	23	Shares not to issue until one-fifth paid.	The whole section.	
	25	Priority of principal moneys secured by existing mortgages.	The whole section.	
	26	Receipts on behalf of incapacitated persons.	The whole section.	
	29	Debenture stock.	The whole section.	
	30	Priority of mortgages and debenture stock over other debts &c.	The whole section.	
	33	First ordinary meeting.	The whole section.	
	40	Power to purchase lands by agreement Gas not to be manufactured except on lands scheduled.	The whole section.	
Pontypool Gas and Water Act 1890	21	Repeal of section 47 of the Act of 1873.	The whole section.	
	35	Repeal of provisions of Act of 1873 as to receiver.	The whole section.	
	37	Debenture stock.	The whole section.	
	38	Priority of mortgages over other debts.	The whole section.	
	40	Separate gas and water accounts to be kept.	The whole section.	
Pontypool Gas and Water Act 1909	4	Interpretation.	So much of the section as defines the expressions "the gas undertaking" and "the limits of gas supply".	
	51	Company may contract with local authority &c. for supply of gas in bulk.	The whole section.	
	52	Power to supply gas fittings.	The whole section.	
	54	Notice of discontinuance.	The words "gas or".	
	55	Power to lay pipes in streets not dedicated to public use.	The whole section.	
	67	Repeal of provisions of Act of 1890 as to receiver.	The whole section.	
	69	Debenture stock.	The whole section.	
	70	Priority of mortgages over other debts.	The whole section.	

2ND SCH.
—cont.

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas and Water Act 1918	2	Incorporation of Acts.	So much of the section as incorporates the Gasworks Clauses Acts 1847 and 1871.
	3	Definitions.	So much of the section as defines "the gas undertaking" and "the gas limits".
	33	Company to supply suitable burners gratis in certain cases.	The whole section.
	34	Power to lay pipes for ancillary purposes.	The whole section.
	47	For protection of the Monmouthshire County Council.	The whole section.
	53	Repeal of provisions of Act of 1909 as to receiver.	The whole section.
	54	As to appointment of a receiver.	The whole section.
	55	Debenture stock.	The whole section.
	58	Consent of Treasury to raising of money.	The whole section.
	59	Application of sections of Act of 1909.	The words "Section 70 (Priority of mortgages over other debts)".
The Pontypool Gas Order 1921	73	Authentication and service of notices by Company.	The words "or gas" in both places where they occur.
	2	Application of general Acts.	The whole section.
	5	Consideration for transfer.	The whole section.
	6	Ranking of Pontypool shares.	The whole section.
	7	Ranking of Pontypool debenture stock.	The whole section.
	8	Abersychan Company's books to be evidence as to holding of shares and debentures.	The whole section.
	9	Shares etc. to be held on same trusts etc. as shares etc. for which they are substituted.	The whole section.
	10	Certificates of existing shares and debentures to be called in and others issued.	The whole section.
	11	Transfers of shares and debentures although by present name to be valid.	The whole section.

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas Order 1921— <i>cont.</i>	12	Actions pending at date of Order.	The whole section.
	13	Contracts to be binding.	The whole section.
	14	Collection of outstanding debts.	The whole section.
	15	As to outgoings and receipts.	The whole section.
	16	Books etc. to remain evidence.	The whole section.
	17	Officers of the Abersychan Company to be accountable for books etc.	The whole section.
	18	Copy of Order to be registered.	The whole section.
	23	For the protection of the Monmouthshire County Council.	The whole section.
	26	Existing mortgages to have priority.	The whole section.
	28	Reserve Fund.	The whole section.
	29	Minor Amendments of Act of 1918.	The whole section.
	30	Repeal.	The whole section.
	31	Costs of Order.	The whole section.
The Pontypool Gas Order 1935	—	—	The whole Order.
The Pontypool Gas Order 1936	2	Incorporation of Acts.	The whole section.
	5	Modification of scheduled agreement.	The whole section.
	6	Consideration for transfer of Cwmbran undertaking.	The whole section.
	7	Creation of Pontypool shares to give effect to scheduled agreement.	The whole section.
	8	Ranking of Pontypool shares.	The whole section.
	9	Order not to affect powers of raising money.	The whole section.
	10	As to trusts of substituted shares.	The whole section.
	11	Exchange of certificates.	The whole section.
	12	As to outstanding transfers.	The whole section.
	13	Cwmbran Company's books to be evidence as to holders of shares.	The whole section.
	14	Contracts to be binding.	The whole section.
	15	Pending actions not to abate.	The whole section.
	16	Books &c. to remain evidence.	The whole section.

2ND SCH.
—cont.

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas Order 1936—cont.	17	Officers of Cwmbran Company to be accountable for books &c.	The whole section.
	18	Collection of outstanding debts.	The whole section.
	19	Company to be responsible for outgoings &c. of Cwmbran Company.	The whole section.
	20	Extension of and redefinition of limits of supply.	The whole section.
	21	Maintenance of gasworks.	The whole section.
	22	Power to store gas.	The whole section.
	27	Priority of principal moneys secured by existing mortgages.	The whole section.
	29	Copy of Order to be registered.	The whole section.
	30	For protection of Monmouthshire County Council.	The whole section.
	33	Costs of Order.	The whole section.
Pontypool Gas and Water Act 1937	3	Incorporation of Acts.	So much of the section as incorporates the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871.
	4	Interpretation.	In the definition of "employee" the words "but does not include any director of the Company other than a person appointed a director by virtue of the provisions of section 26 (Appointment of officers as directors) of the Gas Undertakings Act 1934".
			So much of the section as defines the expressions "the Order of 1921" "the Order of 1936" and "the gas limits".
	7	Consideration for transfer.	The whole section.
	11	Payment of dividend on Usk shares up to date of transfer.	The whole section.
	12	Usk Company's books to be evidence as to holders of Usk securities.	The whole section.

Act or Order	Section	Marginal note	Extent of repeal
Pontypool Gas and Water Act 1937— <i>cont.</i>	13	Substituted Pontypool securities to be held on same trusts &c. as Usk securities.	The whole section.
	14	Existing certificates &c. to be called in and others issued.	The whole section.
	15	Transfer of Pontypool securities and payment of cash into Court in certain cases.	The whole section.
	16	Transfers bequests &c. of Usk securities although by present name to be valid.	The whole section.
	17	Pending actions.	The whole section.
	18	Usk rates rents and charges.	The whole section.
	19	Contracts to be binding.	The whole section.
	20	Books &c. to remain evidence.	The whole section.
	21	Usk officers &c. to be accountable for books &c.	The whole section.
	22	As to directors and auditor of Usk Company.	The whole section.
	23	Reserve fund and renewal fund of Usk Company.	The whole section.
	24	Usk Company to carry on undertaking until date of transfer.	The whole section.
	25	Notice of dissolution of Usk Company to be delivered to Registrar of Companies.	The whole section.
	61	As to streets forming boundary of gas limits.	The whole section.
	62	Relief from obligation to supply.	The whole section.
	63	For prevention of improper use of gas.	The whole section.
	64	Inspecting and testing of gas meters.	The whole section.
	67	Application of former enactments.	The words "the Act of 1918" "Section 70 (Priority of mortgages over other debts)" "The Act of 1918—Section 54 (As to appointment of a receiver) Section 55 (Debtenture stock)" and "Section 27 (Priority of principal moneys secured by existing mortgages)".

2ND SCH.
—cont.

Act or Order	Section	Marginal note	Extent of repeal
Pontypool Gas and Water Act 1937— <i>cont.</i>	72	Commissions on sale of shares or stock or debenture stock.	Subsection (2) of the section.
	85	Recovery of rates from persons removing.	The words "gas or".
	86	As to recovery of sums due for fittings &c.	The words "gas or" wherever those words occur.
	87	Liability to gas or water charge &c. not to disqualify justices &c.	The words "gas or".
The Pontypool Gas Order 1937	2	Incorporation of Acts.	The whole section.
	5	Amendment of scheduled agreements.	The whole section.
	6	Consideration for transfer of Blaenavon undertaking.	The whole section.
	7	Consideration for transfer of Usk undertaking.	The whole section.
	8	As to debentures of Usk Company.	The whole section.
	9	Creation of Pontypool shares to give effect to Blaenavon agreement.	The whole section.
	10	Ranking of Pontypool shares.	The whole section.
	11	As to trusts of substituted shares.	The whole section.
	12	Exchange of certificates.	The whole section.
	13	As to outstanding transfers.	The whole section.
	14	Blaenavon Company's books to be evidence as to holders of shares.	The whole section.
	15	Contracts to be binding.	The whole section.
	16	Pending actions not to abate.	The whole section.
	17	Books &c. to remain evidence.	The whole section.
	18	Officers of Blaenavon and Usk Companies to be accountable for books &c.	The whole section.
	19	Collection of outstanding debts.	The whole section.
	20	As to reserve funds of Usk and Blaenavon Companies.	The whole section.
	21	As to application of invested money.	The whole section.
	22	Extension of limits of supply.	The whole section.
	25	As to declared calorific value in Blaenavon limits.	The whole section.

Act or Order	Section	Marginal note	Extent of repeal	2ND SCH. —cont.
The Pontypool Gas Order 1937— <i>cont.</i>	28	Supply of gas in bulk to Brynmawr and Blaina Gas Company.	The whole section.	
	29	Application of former enactments.	The whole section.	
	30	Copies of Order to be registered.	The whole section.	
	31	For protection of Monmouthshire and Brecknockshire County Councils.	The whole section.	
	33	For protection of London Midland and Scottish Railway Company.	The whole section.	
	34	Repeal.	The whole section.	
	35	Costs of Order.	The whole section.	
The Pontypool Gas Order 1944	2	Incorporation of Acts.	The whole section.	
	8	Costs of Order.	The whole section.	
The Pontypool Gas and Water Act 1945	3	Application of General Acts.	So much of the section as incorporates the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 with amendment in the Pontypool Gas and Water Acts and Orders 1873 to 1945.	
	4	Interpretation.	So much of the section as defines "the gas undertaking". In the definition of "the undertaking" the words "and the gas undertaking" "or the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871" and "or the gas undertaking (as the case may be)".	
	13	Application of capital moneys.	The words "or of the gas undertaking".	
	15	Issue of capital by subscription.	The words "gas or".	
The Pontypool Gas Order 1947	2	Incorporation of Acts.	The whole section.	

2ND SCH.
—cont.

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas Order 1947—cont.	3	Interpretation.	So much of the section as defines “the gas undertaking” and “the gas limits”.
	6	Supply of gas to Brynmawr & Blaina Gas Co.	The whole section.
	7	Supply of gas in bulk.	The whole section.
	8	Purchase of lands.	The whole section.
	10	Application of former enactments.	The words “Section 70 (Priority of mortgages over other debts)”.
	11	For protection of electricity undertakers.	The whole section.
	13	For protection of Abertillery Urban District Council.	The whole section.
	14	Costs of Order.	The whole section.

PART II

PROVISIONS REPEALED AS FROM THE APPOINTED DAY

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas and Water Act 1873	19	Capital.	The whole section.
	22	Profits of the Company limited.	The whole section.
	24	Power to borrow in respect of original capital.	The whole section.
	27	Power to borrow in respect of additional capital.	The whole section.
The Pontypool Gas and Water Act 1890	23	Power to Company to raise new capital.	The whole section.
	26	As to nominal value and vesting of shares.	The whole section.
	27	Limit of dividend on new capital.	The whole section.
	28	Dividends on different classes of shares or stock to be paid rateably.	The whole section.
	33	Application of premium arising on issue of shares or stock.	The whole section.
	34	Power to borrow in respect of additional capital authorised by this Act.	The whole section.

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas and Water Act 1909	59	Power to Company to raise additional capital.	The whole section.
	61	Incidents of additional capital.	The whole section.
	62	Limit of dividend on additional capital.	The whole section.
	65	Power to borrow.	The whole section.
The Pontypool Gas and Water Act 1918	51	Power to Company to raise additional capital.	The whole section.
	52	Power to borrow.	The whole section.
	59	Application of sections of Act of 1909.	The words "Section 61 (Incidents of additional capital)" and "Section 62 (Limit of dividend on additional capital)".
The Pontypool Gas Order 1921	3	Interpretation of terms.	So much of the section as defines the expressions "The Order of 1873" "The Act of 1918" "The Abersychan Company" "Abersychan shares" "Abersychan debentures" "Pontypool shares" and "Pontypool debenture stock".
	24	Additional capital.	The whole section.
	25	Application of former enactments.	The whole section.
	26	Existing mortgages to have priority.	The whole section.
	27	Application of moneys.	The whole section.
	28	Reserve fund.	The whole section.
	29	Minor amendments of Act of 1918.	The whole section.
	30	Repeal.	The whole section.
The Pontypool Gas Order 1936	3	Interpretation.	So much of the section as defines the expressions "Pontypool shares" "Cwmbran shares" "The date of completion" "The Act of 1873" "The Act of 1909" "The Act

2ND SCH.
—cont.

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas Order 1936—cont.			of 1918" "The Order of 1921" "The existing limits" "The added limits" "The limits of supply" and "The directors".
	25	Limit of dividend on additional capital.	The whole section.
	26	Application of former enactments.	The whole section.
	28	Application of money.	The whole section.
The Pontypool Gas and Water Act 1937	4	Interpretation.	So much of the section as defines the expressions "Pontypool shares" "Pontypool debenture stock" "Usk shares" and "Usk debenture bonds".
	8	Creation of shares and debenture stock of Company for purposes of transfer.	The whole section.
	9	Rights of holders of substituted Pontypool shares.	The whole section.
	10	Ranking of substituted Pontypool debenture stock and interest thereon.	The whole section.
	65	Additional capital.	The whole section.
	66	Increase of authorised capital of Company.	The whole section.
	67	Application of former enactments.	The words "and the Order of 1936" "Section 61 (Incidents of additional capital)" and "The Order of 1936—Section 25 (Limits of dividend on additional capital)".
	68	Sale of shares or stock by auction or tender.	The whole section.
	70	Power to borrow.	The whole section.
	71	Redeemable preference capital and debenture stock.	The whole section.

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas Order 1937	3	Interpretation.	So much of the section as defines the expressions "Pontypool shares" "Blaenavon shares" "The existing limits" "The directors" "The Order of 1872" "The Act of 1909" "The Act of 1918" and "The Order of 1936".
	26	Additional capital.	The whole section.
	27	Increase of authorised capital of Company.	The whole section.
The Pontypool Gas Order 1944	3	Interpretation.	So much of the section as defines the expressions "The Act of 1909" "The Act of 1918" and "The Order of 1936".
	5	Additional capital.	The whole section.
	6	Increase of authorised capital of Company.	The whole section.
	7	Application of former enactments.	The whole section.
The Pontypool Gas and Water Act 1945	11	Additional capital.	The whole section.
The Pontypool Gas Order 1947	3	Interpretation.	So much of the section as defines "The Act of 1909" "The Act of 1918" "The Order of 1936" "The Act of 1945" and "The gas undertaking".
	4	Additional capital.	The whole section.
	5	Increase of authorised capital of Company.	The whole section.

THIRD SCHEDULE

PROVISIONS OF THE PONTYPOOL GAS AND WATER ACTS AND ORDERS
1873 TO 1952 CEASING TO HAVE EFFECT IN RELATION TO THE
COMPANY AND THE UNDERTAKING

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas and Water Act 1873	7	Present property of original company vested in Company incorporated by this Act.	So much of the section as vests in the Company the gas undertaking of the original Pontypool Gas and Water Company.
	39	Powers as to construction and maintenance of gas-works &c.	The whole section.
	41	Power to lay pipes against buildings.	The whole section.
Pontypool Gas and Water Act 1909	41	Power to acquire additional lands at Pontypool and to construct gasworks &c. thereon.	The whole section.
	44	Discounts.	The whole section.
	47	As to construction and placing of pipes &c. between gas mains and meters.	The whole section.
	53	Engines &c. of Company let on hire though fixed to premises to remain property of Company.	The whole section.
The Pontypool Gas Order 1921	1	Short and collective titles.	The whole section.
	3	Interpretation of terms.	So much of the section as defines "The Abersychan undertaking" "The date of sale" "The Pontypool Company" "The existing limits" and "The new limits".
	4	Transfer to the Pontypool Company of the Abersychan undertaking.	The whole section.
	19	Extension of limits of supply.	The whole section.
	21	Maintenance and construction of gasworks.	The whole section.
	22	Maintenance of mains etc.	The whole section.

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas Order 1936	3	Interpretation.	So much of the section as defines the expressions "The Company" "The Cwmbran Company" "The scheduled agreement" and "The Cwmbran undertaking".
	4	Confirmation of scheduled agreement.	The whole section.
	21	Maintenance of gasworks.	The whole section.
	22	Power to store gas.	The whole section.
	31	For protection of Great Western Railway Company.	The whole section.
	32	Amendment of section 21 of Order of 1921.	The whole section.
The Pontypool Gas Order 1937	3	Interpretation.	So much of the section as defines the expressions "The Company" "The Blaenavon Company" "The Blaenavon agreement" "The Blaenavon undertaking" "The Usk Company" "The Usk agreement" "The Usk undertaking" "The Blaenavon date of completion" "The Usk date of completion" "The date of completion" "The Blaenavon limits" "The Usk limits" "The new limits" "The added limits" and "The limits of supply".
	4	Confirmation of scheduled agreements.	The whole section.
	23	Power to store gas.	The whole section.
	24	Maintenance of gasworks.	The whole section.
	32	For protection of Great Western Railway Company.	The whole section.
The Pontypool Gas Order 1944	3	Interpretation.	So much of the section as defines the expressions "The Company" and "the Minister".

3RD SCH.
—cont.

Act or Order	Section	Marginal note	Extent of repeal
The Pontypool Gas Order 1944—cont.	4	Power to construct and maintain gasworks etc.	The whole section.
The Pontypool Gas Order 1947	3	Interpretation.	So much of the section as defines “the Company” and “the gas limits”.
	9	Power to construct and maintain gasworks etc.	The whole section.
	12	For protection of Great Western Railway Company.	The whole section.

Table of Statutes referred to in this Act

Title	Session and chapter
Companies Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 16.
Companies Clauses Act 1863.	26 & 27 Vict. c. 118.
Pontypool Gas and Water Act 1873	36 Vict. c. lvii.
Pontypool Gas and Water Act 1890	53 & 54. Vict. c. lxxviii.
Pontypool Gas and Water Act 1909	9 Edw. 7. c. xxx.
Pontypool Gas and Water Act 1918	8 & 9 Geo. 5. c. x.
Trustee Act 1925	15 & 16 Geo. 5. c. 19.
Pontypool Gas and Water Act 1937	1 Edw. 8. & 1 Geo. 6. c. lxvi.
Water Act 1945	8 & 9 Geo. 6. c. 42.
Pontypool Gas and Water Act 1945	8 & 9 Geo. 6. c. viii.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6. c. 58.
Gas Act 1948	11 & 12 Geo. 6. c. 67.

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